

United States Department of Justice
United States Marshals Service
Southern District of Florida

Commercial Item Sole Source Justification (FAR Overhaul Part 12)

*This action is a commercial acquisition conducted under FAR Overhaul Part 12.
Threshold applicability and commercial procedures shall be applied consistent with FAR Overhaul 12.001 and the updated SAT
definition in FAR Overhaul 2.101.
(Authority is issued under E.O. 14275, OMB M-25-26, and FAR Overhaul 1.304)*

MIQ Request Number	M-26-D04-R-000022
Contract Specialist's Name	Julie M. Simpson
Technical Point of Contact	Luis Chiong
Nature or Description of Action	This memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement and the requirement is not expected to exceed the simplified acquisition threshold.
Description of Supply or Service	This new action is to replace the uninterruptable power supply (UPS) battery, capacitor and fan located in the United States Marshals Service Southern District of Florida facility. The UPS was assessed February 2026, and it was determined that a full battery replacement, full capacitor and fan replacement is required. This repair must be completed immediately, as currently UPS is in Bypass Mode and the load is not protected, which will cause load drops and loss of data integrity during any upcoming power events or outages. Anticipated Period of Performance: May 1, 2026, to September 30, 2026
Estimated Total Value	\$60,454.00
Vendor's / Brand Name	EOLA Power UEI: WC4EBR56YXL3
Indicate Authority for Limiting Sources	☒ FAR Overhaul Part 6.103-2 Unusual and compelling urgency. Authority. 10 U.S.C. 3204(a)(2) or 41 U.S.C. 3304(a)(2).
Requirements of the Procurement that makes it necessary to limit sources.	This requirement is urgent because the current UPS is failing. When the UPS fails it could result in immediate loss of unsaved data, corruption of operating system files, and hardware damage. Further when it fails this results in a complete power outage to the entire control room and cellblock areas. This also results in complete loss of viability of all camera systems (interior/exterior) and surveillance monitors, the inability to open or secure detention cells and there is complete darkness throughout the cellblock (over 3,000 square feet of detention cells and prisoner interview space). The failure also leads to instant unplanned downtime, resulting in lost productivity. With a two-to-three-week lead time to receive the replacement

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equipment, failure would result in significant mission critical downtime for the agency. Surges that are occurring can damage and ruin expensive sensitive electronics which would require replacement and cause a financial loss to the agency. This also creates safety concerns for the District Office, the safety and security of the Judiciary and Court, facility safety and security as well as the safety and well-being of the detainees, to include in-custody criminal and material witnesses.

Results of Market Research

Due to the urgency of this requirement and the approvals granted by GSA to work at this facility, limited market research was conducted. While other vendors could potentially perform this service, granting them access to the facility would take additional time, which could impact the agency as discussed above.

Actions to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services

If this requirement was not of such urgency, there would be time to solicit and obtain three quotes. However, due to the urgency, soliciting is not advantageous to the government due to the reasons discussed above. This notice will be posted in accordance with FAR Overhaul Part 5.

List of sources/vendors interested

EOLA Power

Any other facts supporting the justification

Not applicable

Method for Determining Fair and Reasonable Pricing

The proposed price of \$60,454.00 is considered fair and reasonable based FAR Overhaul Part 15.404-1(b)(4).

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Certifications and Approvals

Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

LUIS
CHIONG

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CHIONG
Date: 2026.05.01
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Luis Chiong
Technical Point of Contact

Supervisory/Senior Contract Specialist Concurrence: In accordance with USMS Policy Directive 6.1, Section 7(c) I hereby concur with proceeding with this Soliciting from a Commercial Sole Source Justification.

FREDDIE
EVERETT

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FREDDIE EVERETT
Date: 2026.05.06
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Freddie Everett
Supervisory Contracting Officer

Contracting Officer's Determination: Based upon the information provided in this document, I hereby approve the acquisition of the required supply or service without competition. I also certify that the publication requirements established in FAR Overhaul 5.102 have been or will be fulfilled.


JULIE
SIMPSON

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SIMPSON
Date: 2026.05.01
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Julie M. Simpson
Contracting Officer